

26CMCV00124 26CMCV00124

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-30

Motion: DEFENDANT TESLA, INC.'S MOTION TO COMPEL BINDING ARBITRATION DATE: July 30, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00124 Hearing Date: July 30, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

NATHAN

N. NAMAUTAWONG, an individual,

Plaintiff,

vs.

TESLA, INC., a Texas

Corporation, and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 26CMCV00124

[TENTATIVE] ORDER RE: DEFENDANT TESLA,
INC.'S MOTION TO COMPEL BINDING ARBITRATION

DATE: July 30, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant
Tesla, Inc.

Responding Party: Plaintiff
Nathan N. Namautawong

Notice: Ok

Tentative Ruling: Defendant's Motion to Compel
Binding Arbitration is GRANTED.

I.

BACKGROUND

This is a Song-Beverly
action arising from the lease-to-purchase of an allegedly defective 2024 Tesla
Model S (the "Subject Vehicle"). (Complaint ¶ 8.) Plaintiff Nathan N.
Namautawong alleges that express warranties accompanied the sale of the Subject

Vehicle pursuant to which Defendant Tesla, Inc. ("Defendant" or "Tesla") undertook to preserve or maintain the utility or performance of the Subject Vehicle or to provide compensation if there was a failure in utility or performance. Plaintiff alleges that the Subject Vehicle was delivered with serious defects and nonconformities to warranty which Defendant was unable to repair after a reasonable number of repair attempts.

On January

21, 2026, Plaintiff filed his operative Complaint against Tesla and Does 1 through 10, inclusive, alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of the Song-Beverly Act Section 1793.2(b).

On March

19, 2026, Tesla filed the instant Motion to Compel Binding Arbitration.

On July

17 2026, Plaintiff filed his Opposition.

On July

23, 2026, Tesla filed its Reply.

II.

ANALYSIS

A.

Legal Standard

A party to an arbitration agreement may summarily move or petition the court for an order compelling another non-compliant party to arbitrate their covered claims. (See Code Civ. Proc. §§ 1281.2, 1290.2; 9 U.S.C. §§ 4, 6.)

California law, like Federal law, reflects a strong public policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339 ("Concepcion"); *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9 ("Moncharsh").) "To further that policy, Code of Civil Procedure, section 1281.2 requires a trial

court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.” (Acquire II, Ltd. v. Colton Real Estate Group (2013) 213 Cal.App.4th 959, 967 (“Acquire II”) (internal citation omitted).) “[U]nder both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exists at law or in equity for the revocation of any contract.’” (Higgins v. Superior Court (2006) 140 Cal.App.4th 1238; Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 569 (“Quach”); Morgan v. Sundance (2024) 596 U.S. 411, 419 (“Morgan”).)¿

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc. § 1281.2; Gorchach v. Sports Club Co. (2012) 209 Cal.App.4th 1497, 1505 (noting that, “when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute”).)¿

The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the opposing party bears the burden of proving any fact necessary to its defense by the evidentiary standard. (Gatton v. T-Mobile USA, Inc. (2007) 152 Cal.App.4th 571, 579.)¿

Finally, “[i]f a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. § 1281.4.) And similarly, under the FAA, a court is required to stay the proceedings for a case that has been referred to arbitration, upon application of one of the parties, during the pendency of

such arbitration. (9 U.S.C. § 3.)

B.

Request for Judicial Notice

In support of its motion, Tesla requests the Court take judicial notice Plaintiffs' Complaint in this action.

The Court GRANTS Tesla's request as the Court is empowered to take judicial notice of "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States." (Evid. Code § 452(d).)

C.

Discussion

Tesla moves the Court for an order compelling Plaintiff's action to binding arbitration, pursuant to the FAA, 9 U.S.C. §§ 1-16, and Code Civ. Proc. § 1281, et seq. Plaintiff does not oppose but rather seeks an order to arbitrate through JAMS pursuant to the arbitration provision in the parties' Lease Agreement rather than through AAA pursuant to the arbitration agreement contained in the Motor Vehicle Order Agreement.

1.

Existence of an Agreement to Arbitrate

In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court's determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

Courts apply a three-step burden-shifting process to determine whether an agreement to arbitrate exists. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164 ("Gamboa").) "First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'" (Id., p. 165 (quoting Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413).) The moving party can meet this initial burden by attaching a copy of the

arbitration agreement purporting to bear the opposing party's signature or setting forth the agreement's provisions in the motion. (Gamboa, supra, at p. 165; Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160; Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060.)

For the purposes of this initial burden, "it is not necessary to follow the normal procedures of document authentication." (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218; Gamboa, supra, 72 Cal.App.5th at p. 165.) Cal. Rules of Court, Rule 3.1330, provides that a motion or petition to compel arbitration pursuant to Code Civ. Proc., §§ 1281.2 and 1281.4, "must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration." (Ibid.) "The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Id.)

Tesla argues that Plaintiff agreed to arbitrate any dispute with Tesla arising out of or relating to any aspect of the relationship between Plaintiff and Tesla, and that by placing the order for the subject Vehicle on Tesla's website, Plaintiff agreed to be bound by the Motor Vehicle Order Agreement (the "Order Agreement"), which included an agreement to arbitrate.

The Order Agreement contains the following language:

Agreement to Arbitrate. Please carefully read this provision, which applies to any dispute between you and Tesla, Inc. and its affiliates, (together "Tesla").

If you have a concern or dispute, please send a written notice describing it and your desired resolution to .

If not resolved within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer

Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. You further agree that any disputes related to the arbitrability of your claims will be decided by the court rather than an arbitrator, notwithstanding AAA rules to the contrary. To initiate the arbitration, you will pay the filing fee directly to AAA and we will pay all subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless otherwise provided by law. If you prevail on any claim, we will reimburse you your filing fee. The arbitration will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org. The arbitrator may only resolve disputes between you and Tesla, and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Tesla vehicles. In other words, you and Tesla may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and any other claims must be arbitrated. If you prefer, you may instead take an individual dispute to small claims court.

You

may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc.; P.O. Box 15430; Fremont, CA 94539-7970, stating your name, Order Number or Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.

(Kim

Decl., ¶ 7 (Order Agreement), Exh. 1, p.2 (emphasis in original).)

Plaintiff

does not dispute the existence of the arbitration provision in the Order Agreement and does not dispute that he executed the Order Agreement. The Court therefore finds that Tesla has established the existence of the Order Agreement's agreement to arbitrate.

The Scope of the Order Agreement's Arbitration Agreement

On a petition to compel arbitration

under the FAA, the petitioner bears the burden to show that the agreement “covers the dispute.” (See *Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If the court determines that there is a valid agreement to arbitrate between the parties and the agreement covers the dispute, the court does not have discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; see *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218.)

As set forth above, the scope of the arbitration agreement at issue is very broad and reaches all claims asserted by Plaintiff in instant action. The Order Agreement states, in relevant part, as follows: “you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products.” (See Kim Decl., Exh. 1, p. 2.) This arbitration provision therefore covers any dispute arising between Plaintiff and Tesla.

Plaintiff

does not dispute the above determinations as to the existence of the Order Agreement's arbitration provision nor its scope, but instead points to a second agreement to arbitrate contained in the Lease Agreement, which states:

You

and we agree that upon the election of either of us, any claims or disputes relating in any way to your lease account or transactions will be resolved by binding arbitration as discussed below, and not through litigation in any court (except for matters in small claims court). This arbitration agreement is entered into pursuant to the Federal Arbitration Act, 9 U.S.C. §§ 1-16 (“FAA”).

Claims

are subject to arbitration, regardless of what theory they are based on and whether they seek legal or equitable remedies.

Arbitration applies to any and all such claims or disputes whether they arose in the past, may currently exist, or may arise in the future. All such claims or disputes are referred to in this agreement as "Claims." However, claims relating to the scope, enforceability or validity of this agreement to arbitrate are for a court of competent jurisdiction to decide. The only exception to arbitration of Claims is that both you and we have the right to pursue a Claim in a small claims court instead of arbitration, if the Claim is in that court's jurisdiction and proceeds on an individual basis. Claims in arbitration will proceed on an individual basis, on behalf of the named parties only. Neither you nor we waive the right to arbitrate by using self-help remedies, such as repossession, or by filing an action to recover the Vehicle, to recover a deficiency balance, or for individual injunctive relief. Arbitration procedures are generally simpler than court rules, and discovery may be more limited. Certain rights that you have in court may not be available in arbitration.

YOU

AND WE AGREE NOT TO: 1) SEEK TO PROCEED ON ANY CLAIM IN ARBITRATION AS A CLASS CLAIM OR CLASS ACTION OR OTHER COMPARABLE REPRESENTATIVE PROCEEDING; 2) SEEK TO CONSOLIDATE IN ARBITRATION ANY CLAIMS INVOLVING SEPARATE CLAIMANTS (EXCEPT FOR CLAIMANTS WHO ARE ON THE SAME ACCOUNT), UNLESS ALL PARTIES AGREE; 3) BE PART OF, OR REPRESENTED IN, ANY CLASS ACTION OR OTHER REPRESENTATIVE ACTION BROUGHT BY ANYONE ELSE; NOR 4) SEEK ANY AWARD OR REMEDY IN ARBITRATION AGAINST OR ON BEHALF OF ANYONE WHO IS NOT A NAMED PARTY IN THE ARBITRATION.

If

these terms relating to class or representative procedures are legally unenforceable for any reason with respect to a Claim, then this agreement to arbitrate will be inapplicable to that Claim, and the Claim will instead be handled through litigation in court rather than by arbitration. No arbitrator shall have authority to entertain any Claim on behalf of a person who is not a named party, nor shall any arbitrator have authority to make any award for the benefit of, or against, any person who is not a named party.

The

party filing a claim in arbitration must select either JAMS or the American Arbitration Association ("AAA") as the arbitration administrator. That organization will apply its code or procedures in effect at the time the arbitration claim is filed. If there is a conflict between that code of procedures and this arbitration provision and/or this agreement, this

arbitration provision and this agreement will control. In the event that JAMS or the AAA is unable to handle the Claim for any reason, then the matter shall be arbitrated instead by a neutral arbitrator selected by agreement of the parties (or, if the parties cannot agree, selected by a court in accordance with the FAA), pursuant to the AAA rules of procedure.

The

single arbitrator will conduct the arbitration and decide the Claim in accordance with all applicable substantive law, including recognized principles of equity and statutes of limitations, and will honor all claims of privilege recognized by law. The arbitrator will have the power to award a party any damages or other relief provided for under applicable law. The arbitrator can award damages or other relief provided for by law to you or us, but not to anyone else. The arbitrator's authority is limited to the Claims between you and us.

A

party can file a written appeal to the arbitration administrator within 30 days of award issuance. The appeal must request a new arbitration in front of three neutral arbitrators designated by the same arbitration administrators. The panel will reconsider all factual and legal issues, following the same rules of procedure, and will make decisions based on majority vote. Any arbitration decision and award will be final and binding on the named parties an enforceable by any court having jurisdiction.

We

will pay any costs that are required to be paid by us under the arbitration administrator's rules of procedure. Even if not otherwise required, we will reimburse you up to \$500 for any initial arbitration filing fees you have paid.

We will also pay any fees of the arbitrator and arbitration administrator for the first two days of any hearing. If you win the arbitration, we will reimburse you for any fees you have paid to the arbitration organization and/or arbitrator. All other fees will be allocated according to the arbitration administrator's rules and applicable law.

Rules

and forms may be obtained from, and Claims may be filed with JAMS (800.3522.5267 or jamsadr.com) or the AAA (800.778.7879 or www.adr.org). Arbitration hearings will take place in the

federal judicial district that includes your address at the time the Claim is filed, unless the parties agree to a different place.

(Opp., Exh. 1, p. 7.)

Plaintiff argues that the Court should compel arbitration pursuant to the terms of the Lease Agreement, which allows him to choose JAMS rather than AAA, because the Lease Agreement's arbitration provision was signed subsequent to the Order Agreement and the arbitration provision in the Order Agreement only states that it overrides any different arbitration agreements, not any subsequent arbitration agreement.

Plaintiff's argument is unpersuasive, because of: (1) the differing scopes of the arbitration agreements; (2) the current parties to the respective agreements; and (3) the language of the Order Agreement's arbitration provision.

First, as is noted above, the arbitration provision contained in the Order Agreement covers any dispute arising between the parties. In contrast, the arbitration provision contained in the Lease Agreement is specifically limited to "any claims or disputes relating in any way to your lease account or transactions." (See Opp., Exh. 1, p. 7.) Read in the context of the Lease Agreement, the "lease account or transactions" referenced in the Lease Agreement's arbitration provision encompass Plaintiff's lease payments, financing, and purchase option. The "lease account or transactions" does not encompass the warranties that are the subject of Plaintiff's Complaint.

Second, the Lease Agreement contemplates an immediate assignment from JP Morgan to Chase Bank, N.A. ("Chase") and contains language transferring all right an interest in the Lease Agreement to Chase immediately upon execution by Tesla. (See Opp., Exh. 1, p. 1 ("Lessor intends to assign its rights an interest under this Lease to [Chase]. As used in this lease the terms 'us,' 'our' and 'we' refer to the Lessor and, after assignment to [Chase] or its successors and assigns" (emphasis in original); see also id., Exh. 1, p. 4 ("By signing below, Lessor . . . assigns all of its rights under this Lease, as well as all title an interest in and to the Vehicle, to [Chase] . . .").) While there may have arguably been two extant arbitration agreements between the parties for an

(apparently extremely short) period of time, Plaintiff makes no argument and cites no law as to how the Lease Agreement's arbitration provision – which Lease has now been assigned to Chase – still binds Tesla.

Finally,

the language of the Order Agreement's arbitration provision clearly provides that "this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract."

(Kim Decl., ¶ 7, Exh. 1, p.2.) Plaintiff

fails to provide any authority or substantive argument for differentiating between a "different" arbitration agreement versus a "subsequent" arbitration agreement and does not provide any argument as to why – whether termed "different" or "subsequent" – the language in the Order Agreement arbitration provision specifically stating that it overrides the Lease Agreement's arbitration provision should not be followed.

III.

CONCLUSION

In accordance with the above, Tesla's Motion to Compel Binding Arbitration is GRANTED pursuant to the terms of the Motor Vehicle Order Agreement.

This matter is ordered stayed pending completion of arbitration or further order of this Court. A Post-Arbitration Status Conference is set for June 11, 2027 at 8:30 a.m. in Dept. E.